

SwiftX

Merchant Terms and Conditions

Including Data Privacy Policy
Effective upon electronic acceptance

PLEASE READ THESE TERMS AND CONDITIONS CAREFULLY BEFORE USING THE SWIFTX PLATFORM. BY CLICKING "I AGREE" OR BY ACCESSING OR USING THE PLATFORM, YOU ("MERCHANT") ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE BOUND BY THESE TERMS IN THEIR ENTIRETY. IF YOU DO NOT AGREE, DO NOT USE THE PLATFORM.

PART I — MERCHANT PARTNERSHIP AGREEMENT

1. Definition of Services and Platform Limits

SwiftX provides a digital technology platform that enables customers to place food orders from the Merchant for delivery by independent contractors. SwiftX operates strictly as a technology provider and does not function as a restaurant, food manufacturer, food handler, or food service business in any capacity.

SwiftX does not take possession of, prepare, handle, inspect, or guarantee any food product listed or sold through the platform. The Company's sole function is to provide a digital marketplace and logistics coordination service.

SwiftX is the app, not the kitchen. The Company provides the technology; the Merchant provides the food. SwiftX shall not be responsible for the preparation, quality, ingredients, labeling, safety, or regulatory compliance of food products supplied by the Merchant.

2. Mandatory Business Compliance

The Merchant represents, warrants, and covenants that they currently hold, and will maintain throughout the term of this Agreement, all valid and subsisting business permits, sanitary permits, barangay clearances, and local government unit (LGU) licenses required to legally operate a food establishment in their jurisdiction.

Failure to maintain valid permits shall be considered a material breach of this Agreement and may result in immediate suspension or termination of the Merchant's account.

3. Absolute Responsibility for Food Safety

The Merchant is solely, exclusively, and irrevocably responsible for the quality, preparation, safety, hygiene, labeling, and legal compliance of all food products offered and sold through the SwiftX platform. All food products must at all times comply with applicable health regulations, including:

- Republic Act No. 10611 — Food Safety Act of 2013
- FDA and DOH guidelines on food handling and preparation

- Applicable LGU sanitation ordinances and health standards

4. Tamper-Evident Packaging and Merchant Costs

The Merchant agrees to provide, at their own sole expense, secure and tamper-evident packaging for every order processed through the SwiftX platform. SwiftX does not supply, fund, or reimburse the cost of any packaging materials.

Upon handover of a sealed package to a SwiftX delivery partner, the Merchant warrants that the package contents are complete, accurate, and properly sealed. Any discrepancies discovered after handover are presumed to have occurred prior to pickup and shall remain the Merchant's responsibility.

5. Fulfillment and Ready-Time Accuracy

The Merchant must accurately prepare orders and ensure each order is ready for rider pickup within the preparation timeframe specified on the SwiftX platform. Consistently inaccurate or delayed ready-times negatively affect customer experience and rider efficiency.

Repeated or systematic failures to meet stated preparation times may result in account warnings, temporary suspension, or permanent deactivation at SwiftX's sole discretion.

6. Commission Structure and Price Adjustment

The Merchant agrees to pay the Company a commission on each successfully completed and paid transaction based on the following schedule:

- Introductory Trial Rate: 7% for the first three (3) months (90 days).
- Standard Rate: 10% automatically applied after the 90-day trial period.
- Future Adjustments: The Company reserves the right to adjust commission rates at its sole discretion, subject to at least thirty (30) days prior written notice to the Merchant.

Price Adjustment Guidance: To preserve net profitability, Merchants are advised to adjust in-app menu prices to account for platform commissions. Example: An in-store price of ₱79.00 at a 10% commission yields a recommended app price of ₱86.90 ($₱79.00 \times 1.10$).

7. Weekly Payments and Automatic Remittance

The Company will remit payment to the Merchant on a weekly basis. All payouts are processed net of the applicable platform commission, any applicable refund deductions, and any other agreed charges. SwiftX will provide a remittance summary for each payout cycle upon request.

8. Revenue Integrity and Price Parity

While price adjustments to cover platform commissions are permitted under Section 6, the Merchant shall not list prices on the SwiftX platform that are excessively higher than their in-store prices beyond the amount reasonably necessary to cover the applicable commission rate.

SwiftX reserves the right to flag, investigate, and take corrective action against listings that appear to exploit price disparities in a manner that undermines customer trust and platform integrity.

9. Liability for Refunds and Cancellations

The Company may deduct refund amounts, cancellation fees, or chargeback costs from the Merchant's weekly payout when the cause of such refund or cancellation is determined to have originated from the Merchant. Merchant-attributable causes include:

- Missing, incomplete, or incorrect items in the order
- Food quality complaints verified by SwiftX (e.g., spoiled, uncooked, or contaminated food)
- Order cancellations initiated by the Merchant after acceptance
- Failure to prepare and hand over the order within the stated ready-time

10. Intellectual Property and Marketing Rights

The Merchant grants to the Company a non-exclusive, royalty-free license to use the Merchant's business name, logo, food photography, and other marketing materials for the purpose of promoting the Merchant's offerings on the SwiftX platform and through SwiftX's affiliated marketing channels, including social media and digital advertising.

This license does not transfer ownership of any intellectual property from the Merchant to the Company. The Merchant retains full ownership of all such materials.

11. Marketing and Promotional Participation

The Company may, from time to time, organize platform-wide promotional campaigns or discount events. The Merchant will be notified of any such events in advance, including any impact on commission structures or pricing.

Participation in platform-wide promotions is voluntary unless otherwise specified in a supplementary agreement. Merchants may also create and offer their own store-specific vouchers through the platform.

12. Non-Solicitation of Delivery Partners

The Merchant is strictly prohibited from directly or indirectly soliciting, engaging, or contracting with SwiftX delivery partners to perform deliveries outside the SwiftX platform, or offering them employment or private arrangements in their individual capacity.

Any violation of this clause constitutes a material breach and may result in immediate account termination and legal action for damages.

13. Customer Data Privacy

The Merchant acknowledges that customer personal data transmitted through the SwiftX platform is subject to Republic Act No. 10173, the Data Privacy Act of 2012. The Merchant may use customer data only for the express purpose of fulfilling the specific transaction for which the data was shared. The Merchant is strictly prohibited from:

- Storing or transferring customer data to third-party systems
- Using customer contact information for unsolicited marketing or communications
- Sharing customer data with any third party without explicit consent and legal basis

- Building independent customer databases using data obtained through the platform

14. Indemnification

To the fullest extent permitted by applicable law, the Merchant agrees to defend, indemnify, and hold harmless the Company, its owner, officers, employees, and agents from and against any and all claims, damages, liabilities, and costs (including reasonable legal fees) arising from:

- Any food quality, safety, or hygiene violation attributable to the Merchant
- The Merchant's breach of any representation, warranty, or obligation under this Agreement
- Any violation of applicable law, including the Food Safety Act and Data Privacy Act
- Any claim by a customer, employee, or regulatory body arising from the Merchant's operations

15. Immediate Suspension and Termination Rights

The Company reserves the right to suspend or permanently terminate the Merchant's access to the SwiftX platform, with or without prior notice, in the event of any of the following:

- Confirmed or suspected fraudulent activity, including order manipulation or payment fraud
- Repeated or unresolved customer complaints indicating systemic quality or service issues
- Violation of any applicable law, regulation, or government order
- Breach of the SwiftX Merchant Code of Conduct, including rider mistreatment, health code violations, or discriminatory conduct
- Expiry or revocation of required business or health permits

16. Right to Inspection

The Company reserves the right, upon reasonable prior notice, to conduct or arrange for the inspection of the Merchant's kitchen, food preparation, and storage premises to verify compliance with applicable health, safety, and hygiene standards. The Merchant agrees to cooperate fully with any such inspection.

17. Revenue Reporting and Tax Obligations

The Merchant is solely and exclusively responsible for all tax obligations arising from their sales revenue and business operations, including income tax, percentage tax, VAT, and any other applicable taxes under the National Internal Revenue Code.

SwiftX is responsible solely for taxes applicable to its own commission income and does not act as the Merchant's tax agent.

18. Platform Liability Limits and Force Majeure

The Company shall not be liable to the Merchant for any loss of revenue or business opportunity arising from disruptions to the SwiftX platform caused by events beyond the Company's reasonable control, including internet outages, server failures, natural disasters, government orders, or cyberattacks.

In all other cases, the Company's aggregate liability to the Merchant shall not exceed the total commissions paid by the Merchant to the Company in the thirty (30) days immediately preceding the event giving rise to the claim.

19. Successors, Assigns, and Corporate Transition

This Agreement shall be binding upon the parties and their respective successors and permitted assigns. The Merchant may not assign this Agreement without the prior written consent of the Company.

The Company reserves the right to assign this Agreement to any successor corporate entity or affiliate without the Merchant's prior consent. The Merchant will be notified of any such transfer.

20. Entire Agreement

This Agreement constitutes the entire agreement between the Company and the Merchant and supersedes all prior discussions, negotiations, representations, understandings, and agreements relating to its subject matter. No amendment or modification shall be binding unless made in writing or electronically communicated by the Company through the SwiftX platform.

21. Severability

If any provision of this Agreement is determined by a court of competent jurisdiction to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect to the maximum extent permitted by law.

22. Electronic Acceptance and Governing Law

The Merchant's electronic acceptance of this Agreement constitutes a legally binding digital signature under Republic Act No. 8792, the Electronic Commerce Act of 2000, and shall carry the full legal force and effect of a handwritten signature.

This Agreement shall be governed by the laws of the Republic of the Philippines. Any dispute arising from this Agreement shall be resolved exclusively by the exclusive jurisdiction of the proper courts of Don Carlos, Bukidnon.

[] I have read, understood, and agree to be bound by the SwiftX Merchant Partnership Agreement.

PART II — DATA PRIVACY POLICY

Pursuant to Republic Act No. 10173 — Data Privacy Act of 2012

SwiftX, operated by Josh Carlou C. Ycaro (the "Company"), is committed to protecting the privacy and personal data of all individuals who interact with our platform, including Merchants, customers, and delivery partners. This Policy explains how we collect, use, store, share, and protect personal data.

PP-1. Personal Data We Collect

From Merchants:

- Full name, business name, and DTI/business registration details
- Contact information: phone number, email address, and business address
- Bank account or e-wallet details for payout remittances
- Tax Identification Number (TIN)
- Food safety permits and sanitary license details
- Menu content, food photos, and pricing information

From Customers:

- Full name and contact number
- Delivery address and location data
- Order history and transaction records
- Device information and IP address (for fraud prevention)
- Payment method details (processed securely; not stored in full)

From Delivery Partners:

- Full name, contact information, and home address
- Government-issued identification document details
- Vehicle information (plate number and type)
- Real-time location data during active delivery
- Banking or e-wallet information for earnings remittance

PP-2. Purpose and Legal Basis for Data Processing

SwiftX processes personal data for the following purposes, each supported by an appropriate legal basis under the Data Privacy Act:

- Order fulfillment and delivery coordination — Contractual necessity
- Payout processing and remittance — Contractual necessity
- Platform account management — Contractual necessity
- Fraud prevention and platform security — Legitimate interest
- Customer support and dispute resolution — Legitimate interest
- Legal and regulatory compliance — Legal obligation
- Marketing and platform promotion (Merchant business name and photos only) — Consent via Agreement

PP-3. Data Sharing and Third-Party Disclosure

SwiftX does not sell, rent, or trade personal data to third parties for commercial purposes. We may share personal data only in the following limited circumstances:

- With delivery partners: Customer name, contact number, and delivery address are shared solely to fulfill the order.
- With Merchants: Customer name and contact number are shared solely to prepare and confirm the specific order.
- With payment processors: Financial data is shared with accredited payment service providers as necessary to process transactions.
- With government authorities: Data may be disclosed pursuant to a valid legal order, subpoena, or regulatory requirement.
- With successors: In the event of corporate restructuring, data may be transferred to successor entities subject to equivalent data protection commitments.

PP-4. Data Retention

SwiftX retains personal data only for as long as necessary to fulfill the purposes for which it was collected, or as required by applicable law:

- Active account data: Retained for the duration of the relationship plus six (6) months after account closure.
- Transaction and financial records: Retained for a minimum of five (5) years in compliance with BIR recordkeeping requirements.
- Customer order data: Retained for two (2) years from the date of the last transaction.
- Legal and dispute records: Retained for the duration of any pending legal proceeding plus three (3) years after resolution.

PP-5. Your Rights as a Data Subject

Under the Data Privacy Act of 2012, all data subjects — including Merchants, customers, and delivery partners — have the following rights with respect to their personal data held by SwiftX:

- Right to be Informed: You have the right to know that your personal data is being collected and processed.
- Right to Access: You may request a copy of the personal data SwiftX holds about you.
- Right to Rectification: You may correct inaccurate or incomplete personal data.
- Right to Erasure or Blocking: You may request deletion or blocking of data that is no longer necessary or has been processed unlawfully.
- Right to Object: You may object to the processing of your data, particularly for direct marketing.
- Right to Data Portability: You may request your data in a structured, commonly used format for transfer to another provider.
- Right to Damages: You may seek compensation for any damages resulting from unlawful processing of your personal data.
- To exercise any of these rights, contact our Data Privacy Officer using the details in Section PP-8.

PP-6. Data Security and Protection Measures

SwiftX implements appropriate technical and organizational security measures to protect personal data against unauthorized access, disclosure, alteration, or loss. These measures include:

- Encryption of sensitive data in transit using industry-standard protocols (SSL/TLS)
- Access controls ensuring personal data is accessible only to authorized personnel
- Regular review of access logs and activity monitoring
- Secure deletion protocols for data that has reached the end of its retention period
- Training of staff and delivery partners on data privacy obligations

In the event of a personal data breach that poses a real risk of harm, SwiftX will notify the National Privacy Commission (NPC) within seventy-two (72) hours of discovery and will notify affected individuals without undue delay, as required by law.

PP-7. Cookies and Tracking Technologies

The SwiftX mobile application and any associated web interfaces may use cookies, pixel tags, and similar tracking technologies to enhance user experience, measure platform performance, and support fraud prevention. Users may adjust their device settings to limit tracking; however, doing so may affect the functionality of certain platform features.

PP-8. Data Privacy Officer and Contact Information

SwiftX has designated a Data Privacy Officer (DPO) responsible for overseeing compliance with this Policy and the Data Privacy Act of 2012. For any privacy-related inquiries, complaints, or data subject requests, please contact:

SwiftX Data Privacy Officer

Business: SwiftX (Josh Carlou C. Ycaro, Sole Proprietor)

Location: Don Carlos, Bukidnon, Philippines

Email: swiftxph@gmail.com

Subject Line: "Data Privacy Request — "

Requests will be acknowledged within three (3) business days and resolved within thirty (30) business days.

PP-9. Updates to this Privacy Policy

SwiftX reserves the right to update or revise this Privacy Policy at any time. All registered Merchants and active users will be notified of material changes at least fifteen (15) calendar days prior to the effective date. Continued use of the SwiftX platform after the effective date constitutes acceptance of the revised policy.

[] I consent to the processing of my data and agree to the SwiftX Data Privacy Policy.
